



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8585 (EXTENSION)
SECOND REVISION March 2, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8585 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to October 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 27 1991

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Bergen Barrel & Drum Company
Kearny, NJ

October 22, 1991

Dixie Poly-Drum Corporation
Yemassee, SC

October 22, 1991



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DOT-E 8585
(SECOND REVISION)

1. Bergen Barrel & Drum Company, Kearny, New Jersey, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of certain corrosive liquids, flammable liquids, and class B poisonous liquids, described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the use of a DOT Specification 34 drum of 15-, 20-, 30-, - 35 and 55-gallon capacity and, provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Dixie Poly - Drum Corporation, Yemassee, SC - PTE-1.

2. BASIS. This exemption is based on Bergen Barrel & Drum Company's application dated January 19, 1987, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

Dixie Poly - Drum Corporation's application dated January 19, 1987.

3. HAZARDOUS MATERIALS (Descriptor and class).

a. Tin tetrachloride, classed as corrosive material and other corrosive liquids specifically identified to, and acknowledged in writing by the Office of Hazardous Materials Transportation (OHMT) prior to first shipment.

b. Flammable liquids or class B poisonous liquids specifically identified to, and acknowledged in writing by, the OHMT prior to the first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR Part 173., Subpart D, F, and H; 173.247; 178.19.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.

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7. SAFETY CONTROL MEASURES.

a. Packaging authorized is a DOT Specification 34 reusable, rotationally molded, polyethylene drum of 15-, 20-, 30-, 35- and 55-gallon capacity for use without overpack. Removable head is not authorized.

b. Containers must possess the chemical and physical properties as reported to the OHMT by the applicant's petition dated February 18, 1981.

c. Any change of design, materials or process method must be approved by the OHMT.

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging covered by this exemption pursuant to 49 CFR 173.22a.

b. Reuse of container must be in accordance with applicable requirements of 49 CFR 173.28.

c. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

d. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

e. Each packaging manufactured in accordance with the requirements of this exemption must be marked in a manner which identifies the physical location (city and state) of the facility at which it is manufactured.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. February 1, 1990.

Issued at Washington, D.C.:

MAR 2 1988

(DATE)

sn/ [Signature]
Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

Address all inquires to: Director, Hazardous Materials
Transportation, Research and Special Programs Administration,
Department of Transportation, Washington, D.C.,
20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA